

Athens, 03-09-2024

No. Protocol: G/EXE/2299

DECISION 26/2024

(Department)

The Hellenic Data Protection Authority convened at the invitation of its President in a teleconference meeting on Monday, 20-12-2023, at 10:00, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzaleks, in the absence of the President of the Authority Konstantinos Menoudakos, the regular member of the Authority Konstantinos Lamprinoudakis as the rapporteur, and the alternate members of the Authority, Maria Psalla, replacing the regular member Grigorios Tsolias, who, although duly summoned, did not attend due to a conflict, and Demosthenes Bougioukas. Present without voting rights were Stefania Plota, special scientist-lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

A (hereinafter referred to as "the complainant") submitted application no. G/EIS/8390/29-06-2022 for the reconsideration of complaint no. G/EIS/7496/16-11-2021 against DEI for violation of the right to rectification/deletion, which was concluded with document no. G/EXE/1078/09-05-2022 of the Authority. Specifically, the complainant on ... requested DEI S.A. to rectify/delete his data from the company's systems for properties for which he is "neither the owner nor the tenant," except for the property on the beach of X, which is owned by him. The company responded to the complainant on ... that his personal data had been successfully corrected in its computerized system. However, from December 2020 to July 2021, the complainant, as he states, received periodic phone calls from law firms and collection agencies regarding overdue debts to DEI for services related to properties, for which, according to his claims, his data should have been deleted, and on ... he submitted another request to DEI for the deletion of his data, specifically his VAT number, from the disputed services that do not concern him. Additionally, the complainant received a cash invitation from the Municipality of Athens dated ... for debts related to a property on ..., amounting to ... euros. The Authority, with its document no. G/EXE/389/14-02-2022, forwarded the complaint to DEI for comments, and the company, in its response no. G/EIS/3598/09-03-2022 to the Authority, stated, providing relevant correspondence with the complainant, that the latter was obliged, as the company had already informed him multiple times, to restore the actual and legal status of the services for which he had declared himself (in the e-bill application) as the contact person, so that the details of the "actual beneficiaries" could be corrected/replaced. Subsequently, the Authority sent document no. G/EX/1078/09-05-2022 to the complainant, highlighting what DEI S.A. had stated, according to which in order for the request for rectification/deletion of the complainant's data to be satisfied, he was asked to activate the proper and complete restoration of the historical data of the disputed services, in accordance with the applicable regulatory and legislative framework for electricity. The Authority concluded by stating that it had currently completed the examination of the case, noting in relation to the above that, in case of doubt regarding the legal status of the said properties and the actual beneficiaries, a dispute arises, for the resolution of which the civil courts are primarily competent, and that it can naturally intervene, if and when, following the relevant judicial decision, a field is left within the framework of

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which is competent. Subsequently, the complainant requested the reconsideration of the case in question.

Furthermore, the complainant submitted a second, supplementary complaint, numbered G/EIS/7862/09-06-2022, against the law firms "Sioufas and Partners," "Andrikopoulos and Partners," "Papavasileiou-Balli and Partners," "Frangou," the Debt Information Company "Paladino SA" (hereinafter referred to as EEO), and the Municipality of Athens, which he also notified to DEI S.A. for lack of appropriate organizational and technical measures and illegal processing without a legal basis,

according to his claims, due to the continuous phone calls from the first respondents regarding overdue debts of properties, for services for which he had been declared as a contact person, and for the cash invitation numbered ... from the Municipality of Athens dated ... for debts to DEI concerning a service, which, as he states, DEI had accepted on ... that it does not concern the complainant. Specifically, regarding the phone calls that the complainant received from the law firms and the EEO, he states that DEI S.A. on ... informed him that it had successfully deleted his details from its computerized system concerning the properties on ... and ... and on ... with a new message confirmed that the only property that concerns him is in X. However, as the complainant states, from December 2020 to January 2022, while informing DEI, the law firms, and the EEO in every phone call that he had no relation to the properties, he continued to receive calls for overdue debts related to the disputed services, and despite exercising the right to correction/deletion with DEI S.A., it is evidenced by the email dated ... from DEDDIE, according to which the VAT number of the complainant continues to appear in eleven (11) services that do not concern him, that DEI S.A. has not deleted his details from those services. Also, regarding the aforementioned cash invitation from the Municipality of Athens, the complainant sent an email on ... to the Municipality of Athens to inquire about the sources of the data, whether it had informed DEI as it should have, and in how many services his VAT number was incorrectly mentioned, and on ... he exercised his right to delete his details via email, but the Municipality of Athens has not responded to any of the complainant's emails within the deadlines provided by law. Finally, the complainant states that the law firms, the EEO, and the Municipality of Athens, while having been informed by him that he is no longer related to the said services, did not inform DEI of the incorrect registration of his details, reiterating that since DEI had already informed him in November 2020 about the successful deletion of his personal data, it should have similarly informed the other involved entities attributing the above to a lack of appropriate technical and organizational measures.

In light of the above, from the files of the two complaints, it appears that the second complaint concerns the same issues against DEI S.A. and the Municipality of Athens and is supplementary to the first complaint, as its main subject is the processing of personal data by DEI and its refusal or possible inability to dissociate the complainant's contact details from the disputed services that have overdue debts and which, according to the complainant, do not concern him. Therefore, the Authority examined, due to relevance, the request for reconsideration of the first and main complaint against DEI S.A. and the related second complaint against the Municipality of Athens as well as against DEI and the mentioned processors acting on behalf of and for the account of DEI, as from the data of the said files it emerged that, in principle, there is no issue of organizational or technical matters with the processors, given that DEI, although initially stated to the complainant that it would satisfy his request for dissociation from the disputed services, subsequently refused to satisfy it and was the one who gave the orders for the assignment of the complainant's case to its partners/processors acting on its behalf (see the response numbered G/EIS/3598/09-03-2022 from DEI to the first complaint).

Subsequently, the Authority sent to the Municipality of Athens and DEI the document numbered G/EXE/2219/09-09-2022 for the provision of opinions, and the Municipality

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Athens, in its response numbered G/EIS/11034/14-10-2022 to the Authority, stated that until 2019 it received the records via email and that since 2020 the e-bill application has been activated; therefore, in the matter at hand, the debt was sent via the email from ... of DEI. In the document dated ... titled "Recommendation for Mr. A" from the Department of Fees & TAP of the Municipality to the President of the Economic Committee regarding the "Deletion of records with details ... and ... from uncollected Municipal Fees – Municipal Tax and TAP through confirmed revenue statements of DEI S.A. in the name of Mr. A," it is mentioned that a discrepancy in the debtor for the contested connection was identified during the updating of the information confirmed by DEI, as evidenced by the confirmed debts of the Municipality from DEI, as well as from the Registry of Natural and Legal Persons of AADE, and it recommends the deletion of the aforementioned records, totaling ...€ that have been charged against the complainant for the property located on ... street and will seek the actual debtor. Subsequently, the Data Protection Officer (hereinafter DPO) of the Municipality of Athens submitted to the Authority the document numbered G/EIS/103012/25-10-2022, in which he outlines the entire

history of the case and the actions taken, concluding that the Municipality is awaiting the decision of the Economic Committee regarding the deletion of the erroneously confirmed amount against the complainant.

DEI S.A. in its document numbered G/EIS/10683/04-10-2022 states that according to the provisions of Law 25/1975 (Municipal Fees), Law 1080/1980 (Municipal Taxes), Law 2130/1993 (Property Tax), and Law 1730/1987 (ERT), DEI is obliged to collect the amounts of Municipal Fees, Municipal Taxes, TAP, and the ERT fee along with the electricity bills and subsequently remit them to the entitled parties, namely the Municipalities and ERT, and specifically, according to what is also provided by Law 3979/2011, the complainant's data were transmitted to the Municipality of Athens for the fulfillment of this legal obligation of DEI S.A. Subsequently, the Authority, in its document numbered G/EX/2773/02-11-2022, forwarded the response numbered G/EIS/11034/14-10-2022 from the Municipality of Athens to DEI and invited it to express its views on the matter, taking into account the statement dated ... from the complainant to the company that he has submitted the required documentation to DEI S.A. since October 2020, in order to prove ownership or not of the contested properties. The complained company, in its document numbered G/EIS/12315/06-12-2022, reiterated the obligation of the customer to notify any changes to their details, concluding that the only way to satisfy the complainant's request for deletion is the correction/replacement of the details of the actual beneficiaries. Subsequently, the company, in its document numbered G/EIS/12729/21-12-2022, states that the complainant "following the decision of the DPA 1078/09.05.2022, followed the instructions for transferring the electricity supply and now only the supply of his residence at X corresponds to his personal VAT number (...). Furthermore, we would like to clarify that the events described in the aforementioned complaint occurred before the issuance of the decision DPA 1078/09.05.2022 and for as long as Mr. A maintained supplies that did not belong to him under his VAT number."

In light of the above, the Authority summoned, with documents numbered G/EX/1612-21-06-2024, G/EX/1615/21-06-2024, and G/EX/1613/21-06-2023, i. the complainant, A, ii. the company DEI S.A., and iii. the Municipality of Athens, as legally represented, to a hearing via teleconference before the Authority (in a Department composition) on 28-06-2023, in order to investigate the aforementioned complaints. During the session, the complainant's request for postponement was discussed, which was accepted by the Department, and a new date for the discussion was set for 19-07-2023, without the sending of new summons. In this session, the complainant A was present along with his attorneys Emmanouil Laskaris (AMDSA ...) and Andromachi Barda (AMDSA ...), on behalf of DEI S.A. its legal advisors Maria Lamprinou (AMDSA ...), Ioanna Voulgaridou (AMDSA ...), the DPO B, and G and D from the DPO's office, and on behalf of the Municipality of Athens, its legal advisor Georgios Galanis (AMDSA ...). During this session, the attendees, after presenting their views, submitted a

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The complainant, the Public Power Corporation S.A. (ΔΕΗ Α.Ε.), and the Municipality of Athens refer to the documents with protocol numbers Γ/ΕΙΣ/5930/21-08-2023, Γ/ΕΙΣ/6016/25-08-2023, and Γ/ΕΙΣ/5715/03-08-2023, respectively.

The complainant, beyond what he had mentioned prior to the hearing, emphasizes in the post-hearing memorandum that although the Public Power Corporation S.A. assured him through electronic messages dated ... and ... that his data had been successfully deleted and that its systems had been updated accordingly, the document dated ... from the Public Power Corporation S.A. states that following the decision of the Hellenic Data Protection Authority (ΑΠΔΠΧ) 1078/09-05-2022, he followed the instructions for the transfer of services and now only the supply of his residence at X corresponds to his personal tax identification number (ΑΦΜ), which is in complete contradiction with the document dated ... from the company, in which it claimed that the Public Power Corporation could not delete his data from the supplies that did not concern him and had not provided any supporting documents.

Furthermore, regarding the satisfaction of the right to deletion by the Municipality of Athens, the complainant states that the Municipality has not responded to his legally submitted request, apart from the electronic message dated ... from the Data Protection Officer (ΥΠΔ) stating that 11 supplies bear his tax identification number but not his phone numbers. As for the law firms and collection agencies, while they had been informed by the complainant about the illegal processing of his data, they did not delete his information, nor did they ever confirm the existence of a debt and the identity of the debtor,

and during the period he was receiving phone calls, they repeatedly called him, resulting in the disturbance of his personal and family peace, while the dissemination of his data defames him and offends his personality.

The Municipality of Athens stated that, within the framework of Article 43 of Law 3979/2011, paragraph 1b, according to which municipal cleaning and lighting fees [...], the tax on electrified spaces [...] and the real estate tax [...], burden the person liable for payment of the electricity bill, and if the liable person does not pay the amount, the electricity supplier proceeds to cut off the supply, and if the reconnection of electricity is not requested within three months from the disconnection, the supplier notifies the relevant municipality of the details of the debts, so that it can proceed with their collection, and given that there were unpaid municipal fees for the property on ... ,

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the Public Power Corporation sent the Municipality the accounting statements of uncollected municipal fees and property taxes (ΤΑΠ) in December 2018. In this file, the liable person for the supply of the aforementioned property on the 2nd floor appeared as E with tax identification number (ΑΦΜ) ... , and in order to inform the Municipality, it sought his residential address with the tax identification number through the online services of the Central Union of Municipalities of Greece (ΚΕΔΕ) for the provision of personal data of non-tax content from the Independent Authority for Public Revenue (ΑΑΔΕ), based on a decision that granted access to local authorities for this purpose. The check revealed that the name E did not correspond to the tax identification number of the alleged liable person, as this tax identification number belonged to the complainant, and also, a search was conducted for E's tax identification number, and no entry was found in the ΑΑΔΕ. Therefore, the Municipality proceeded to certify the debt to the complainant and in 2021 sent the relevant notifications for the debts from cleaning, lighting, and property taxes based on the data that, due to access through the ΚΕΔΕ application, were registered in the ΑΑΔΕ. Subsequently, with the electronic message dated ... from the Data Protection Officer of the Municipality, the request for deletion was communicated, as there were reasons for erroneous charging, and the Financial Committee approved the deletion of the amounts that were incorrectly charged with the act number ... , and after checking the records of the applications for cleaning, lighting, and property taxes, it is confirmed that there is no correlation of the complainant's name with the supply of the property on The Municipality of Athens emphasizes that the Public Power Corporation never informed it of the non-existence of the complainant's debts, while in the Municipality of Athens' financial management application, there is a file for the complainant with tax identification number (ΑΦΜ) ... , which was created due to other transactions with the Municipality of Athens, and the deletion of this personal data cannot be done because the retention of transaction history with the Municipality is mandatory. Regarding whether there has been a response to the electronic message dated ... from the complainant to the Data Protection Officer of the Municipality, it states that the Data Protection Officer informed the complainant in detail during regular telephone communications about the above.

The Public Power Corporation S.A., in its post-hearing memorandum, emphasizes that the only thing that could be considered as a new element contributed by the complainant with the request for remedy is the correspondence of representatives of the Public Power Corporation with the current...

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managers of the disputed properties, from which it is demonstrated the extraordinary effort of the Public Power Corporation (PPC) to assist the complainant. The company, regarding the substantive issues, particularly mentions the following: i. concerning the relationship of the complainant with the disputed supply points, emphasis is placed on the apartment building on ... street, where the applicant and members of his family, as well as the company with the details "Partners A.A.E." (of which the complainant was a representative), were owners of 30 horizontal properties, and paradoxically there are only 7 meters-supply points that supply 121 independent horizontal properties. Correspondingly, on ... street, one of the supply points is registered in the name of the deceased father of the complainant, and rightly so, PPC contacts him regarding this, as it constitutes a continuous obligation relationship, which is inherited and, since a certificate of renunciation has not been submitted to PPC within 4 months from the date of death, the heir becomes

the universal successor of the deceased and is burdened with the debts of the inheritance. Additionally, in 1993, when the complainant was the manager of the two apartment buildings, in order to avoid the process of changing the name on the supply points, as it required the submission of certificates of electrical installations, death certificates, and other documents, he did not report the death of the initially contracted individuals and requested the registration of his own Tax Identification Number (TIN) on the 30 supply points, and during the complainant's meeting with the legal service and the Data Protection Officer (DPO), he was asked to submit a responsible declaration stating that he has no relation to the disputed supply points, which the complainant refused. Beyond the above, at ..., the complainant filled in the TIN during the upgrade of his accounts on ebill, and although he had the opportunity to correct them by submitting the necessary documents, he did not do so and since then he did not engage until some of the users stopped paying their share of the electricity cost. Therefore, the complainant's claim that he had no relation to the supply points corresponding to the properties on ... and ... does not reflect reality. ii. Regarding the calls received by the complainant, PPC states that during the discussion before the Authority, the complainant claimed that PPC called him twice a day, for two years, i.e., 768 calls, while the company asserts that "the calls made by the authorized PPC debt collection companies to his contact numbers amount to only 21, which were made over a period of 7 months, from 24-11-2020 to 01-07-2021, in accordance with the provisions of the relevant legislation (see Law 3758/2009) and concerned all the supply points in the complainant's details." PPC submitted to the Authority a table for 9 supply points, "which lists the partners of PPC to whom the management of the disputed supply points was assigned, as well as the date of assignment and revocation of this assignment," including law firms and collection agencies. Finally, the company states that it has sent relevant informative letters to the addresses of the disputed properties and in the names of the initial contracting parties. iii. Regarding the right to erasure, the complained company adds that, since there are overdue debts from the supply of electricity, it lawfully does not erase personal data, as they are necessary for the establishment, exercise, and support of its legal claims, either judicially or in administrative or extrajudicial proceedings for the collection of its claims, while the complainant insists on exercising the right to erasure, even though he continues to be a customer of PPC, so his personal data are required for the issuance of a bill and PPC cannot satisfy this specific right, as the conditions of Article 17.3.b of the GDPR are met in conjunction with Article 3 D II of Law 1040/1980 (Government Gazette 76/A/3/4/1980), according to which PPC S.A. is obliged to retain its customers' data. The company states that the complainant "without understanding the above, instead of resolving the issue that arose due to the mismatch of the supply points with the actual users and proceeding with the disconnection process from the customer account in the ebill information environment, turned the procedural issues of poor management on his part of the matters concerning him into issues of processing and protection of personal data. The applicant, wanting to stop PPC's calls regarding the overdue debts of the supply points for which he was the manager, without taking the necessary actions as analyzed above, believed that he would achieve his goal by disconnecting the said supply points from

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the account on ebill. This conclusion was reached on his own, without the indication of any competent authority from DEI. Had he consulted any competent authority from DEI, he would have been informed that the details of the services can only be changed through the drafting of a contract and that ebill serves as an informational environment. The only details that a user can change on ebill are the contact information and which services they wish to monitor. Mr. A, on the ... of ..., requested from the ebill department the disconnection of the services he was previously managing, referring to this action as the "deletion of his VAT number" from the services. Mr. ST, who took over the request at Customer Care, proceeded with the disconnection of the services from the ebill profile and informed Mr. A that his request was completed. In fact, Mr. ST, acting with exemplary courtesy, corrects Mr. A and refers to his action as a "successful correction" rather than a deletion. Naturally, Mr. A's arbitrary action did not stop the disturbances. This resulted in the unacceptable behavior of Mr. A, who instead of asking what the appropriate procedure is to stop the disturbances, made unfounded accusations based on false facts. More specifically: He complains about the continuation of the disturbances while no representative of DEI told him that the disconnection of the services he was previously managing from

ebill entails the cessation of disturbances for debts related to the services that correspond to him. Moreover, the customer's debts continue to exist until the point of changing his name or another action that disconnects him from the respective service. He claims that he has submitted the E9 while he only submitted the E1. Even if he had knowingly submitted his E9, this does not render him "unrelated" to the disputed services, as we have already demonstrated above. Furthermore, he deliberately concealed his E9, as this proves the relationship with his father and his father's real estate. iv. Following many efforts and personal involvement of members of the legal service and the office of the Data Protection Authority, where more than the maximum diligence and work was expended to gather the legally feasible and permissible data corresponding to the disputed services, DEI managed to ascertain the current status of the services.

The Authority, after examining the file's data, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1.
Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter "GDPR") and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13 paragraph 1 point (g) of Law 4624/2019, it follows that the Authority has the competence to address the complaints under examination and to exercise, correspondingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

2.
Whereas, according to Article 4 point (7) of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data," and with point (8) of the GDPR, the processor is defined as "the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the data controller."

3.
Whereas, Article 5 of the GDPR establishes the principles of processing that govern the processing of personal data and in paragraph 1 states that personal data, among other things: "a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, transparency'), (...) d) shall be accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate are rectified or deleted without delay."

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the immediate deletion or correction of personal data that is inaccurate, in relation to the purposes of processing ("accuracy"). According to paragraph 2, "the data controller is responsible and is able to demonstrate compliance with paragraph 1 ("accountability")."

4.
Whereas, according to Article 16 of the GDPR, "The data subject has the right to request from the data controller the rectification of inaccurate personal data concerning them without undue delay. Taking into account the purposes of processing, the data subject has the right to request the completion of incomplete personal data, including by means of a supplementary statement."

5.
Whereas, according to the provision of Article 17 paragraph 1 of the GDPR, "The data subject has the right to request from the data controller the deletion of personal data concerning them without undue delay and the data controller is obliged to delete personal data without undue delay, if one of the following reasons applies: b) the data subject withdraws consent on which the processing is based according to Article 6 paragraph 1 point a) or Article 9 paragraph 2 point a) and there is no other legal basis for the processing, [...], c) the data subject objects to the processing according to Article 21 paragraph 1 and there are no compelling legitimate grounds for the processing or the data subject

objects to the processing according to Article 21 paragraph 2, d) the personal data have been processed unlawfully."

6.

Whereas, according to the provision of Article 18 paragraph 1 of the GDPR, "1. The data subject has the right to obtain from the data controller the restriction of processing when one of the following applies: a) the accuracy of the personal data is contested by the data subject, for a period enabling the data controller to verify the accuracy of the personal data, b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests, instead, the restriction of their use, c) the data controller no longer needs the personal data for the purposes of processing, but such data are required by the data subject for the establishment, exercise or defense of legal claims, d) the data subject has objected to the processing according to Article 21 paragraph 1, pending verification of whether the legitimate grounds of the data controller override those of the data subject."

7.

Whereas, according to the provision of Article 12 paragraph 2 of the GDPR: "The data controller facilitates the exercise of the rights of data subjects provided for in Articles 15 to 22. In the cases provided for in Article 11 paragraph 2, the data controller shall not refuse to act on a request from the data subject to exercise their rights under Articles 15 to 22, unless the data controller demonstrates that it is unable to verify the identity of the data subject" and paragraph 3 "The data controller provides the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any event within one month of receipt of the request. This period may be extended by two further months where necessary, taking into account the complexity of the request and the number of requests. The data controller shall inform the data subject of any such extension within one month of receipt of the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information shall be provided, where possible, by electronic means, unless the data subject requests otherwise."

8.

Whereas, according to Law 3758/2009 "Companies for the information of debtors regarding overdue claims and other provisions," as amended and in force, it is initially provided that creditors have the right to provide debtor information companies (DEO) with information regarding overdue claims against them, without their consent, for the legally prescribed purposes: a. to inform debtors about the

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the existence of overdue debts and b. the negotiation of the time, manner, and other terms of their repayment (i.e., the arrangement or settlement of debt), at the instruction and on behalf of the creditors (see, in particular, articles 3 par. 3, 4 par. 2, 8 par. 3 of Law 3758/2009, as amended and in force). Regarding the obligation to inform, it is noted that according to the 3/2020 decision of the Plenary of the Supreme Court (similarly see the decision 958/2022 of the Supreme Court), it was accepted (contrary to the 98/2017 decision of the Authority) that in the case of the provision of data to a data processor, falling under one of the categories of recipients (e.g., EEO) for which there has been notification, there is no obligation for the data controller to provide new specific notification to the data subject, that is, at the time of the provision of personal data to the specific EEO¹. Furthermore, with the aforementioned law, the operational framework of debt collection companies and the specific obligations that this service entails for both the aforementioned companies and the creditors are regulated, and the control mechanism of the said debt collection service is established. In this context, the general supervision of the debt collection service, whether conducted by debt collection companies or by the creditor themselves, falls under the jurisdiction of the Ministry of Development/General Directorate for Consumer Protection/General Secretariat for Commerce and Consumer Protection, according to article 10 par. 1 of Law 3758/2009, as amended and in force, while the Authority has special jurisdiction for only specific violations of Law 3758/2009, according to article 10 par. 1 subparagraph c of Law 3758/2009².

9.

Since, according to established case law of the Authority³ regarding complaints about harassment by a law firm, as well as for the assignment of a case to a law firm for extrajudicial or judicial collection of a debt, processing for which consent, approval, or authorization of the debtor is not required (see

article 6 par. 1 subparagraphs b and f, article 9 par. 2 subparagraph f of the GDPR), the competent authority for claims regarding repeated harassment and/or offensive behavior by a lawyer is the relevant bar association⁴.

10.

Since, in the case under examination, from the documents in the file, the hearing of the involved parties, as well as the submitted memoranda, it appears, for the issues that the Authority considers should be investigated within the framework of the examined complaint and within its jurisdiction, that:

A. regarding DEI S.A.:

i. the complained company processed personal data of the complainant, as the owner/manager of properties supplied with electricity by the company, having the status of data controller under article 4 par. 7 of the GDPR, since the company determines the purposes and means of processing the personal data of its customers included in filing systems, and therefore becomes obliged to comply with the principles introduced by article 5 of the GDPR.

ii. The other companies, namely law firms and EEOs, act upon the instruction of DEI and its assignment of cases to them for the purpose of collecting debts.

iii. The complainant, as the manager of the properties and son of one of the owners and possibly an heir, initially linked his VAT number with the aforementioned supplies; in 2018, he completed his VAT number during the upgrade of his accounts on ebill, and subsequently, after the phone calls began on 17-11-2020, the complainant submitted a request to the complained company for the deletion of his VAT number from DEI's accounts for properties that he claims do not belong to him, and on ... he receives a response from the company that "your personal details have been successfully corrected in our computerized system." However, although on ..., on ..., and on ..., the complainant informs the company that he continues to receive phone calls regarding debts, on ... the company informs him that, using his VAT number, the only property that appears in his name is the property at X. Since, therefore, the

⁴ See, for example, the Annual Report of the Data Protection Authority 2022 with references to decision 49/2011 of the Data Protection Authority, in Opinion 598/2012 of the State Legal Council in the press release of 14-11-2014 of the Athens Bar Association.

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The disturbances continued until January 2022, when the complainant requested on ... from DEI the details of the law firms and on ... of the "collection companies" that were calling him, which he received, as well as a record of the calls he had received from the aforementioned. In light of the above, regarding the right to rectification/deletion exercised by the complainant towards the complained company, it appears that the latter assures the complainant that his details have been corrected, without, however, clarifying further whether this correction has been made only on the ebill platform regarding the contact details or also in the "files" of the said services. The claims of the complained company that the complainant himself should investigate and understand the differentiation between its systems, while he had written communication with representatives of the company who assured him about the deletions and apologized for the disturbances from its associates, do not align with the obligation of the data controller to facilitate the data subject in exercising the right to rectification/deletion. Furthermore, the company itself should have informed the complainant that instead of the E9, which was requested, he submitted the E1, and this could hinder her in the substantive examination of his request, even if the submission of the E9 would not prove that it is unrelated to the services, as DEI states. While DEI initially assured the complainant of the correction of his details, misleading him into the impression that the right to rectification/deletion he had exercised had been satisfied, it continues to communicate his data to its partners for the settlement of the debts of the aforementioned services, while in its views to the Authority, both in the initial complaint and in the supplementary one, it refuses to satisfy the said request, insisting, based on the argument that each owner must inform DEI himself about the ownership status of the properties, that the complainant is related to the said services for the reasons it mentions. In the final document before the hearing, DEI, without providing a clear picture, states that the problem has been resolved, without us knowing the exact time when the restoration of the ownership status of the disputed services took place and with what actions. Therefore, the Authority finds that the rights to rectification

and deletion were not duly and timely satisfied except after the relevant complaints and the intervention of the Authority, and a violation of Articles 16 and 17 paragraph 1 subparagraphs b, c, and d of the GDPR arises in conjunction with Article 12 paragraphs 2 and 3 of the GDPR.

iv. Regarding the disturbances that the complainant has received from DEI's associates, it should be noted that from the table submitted by the company, it appears that the last date for the withdrawal of the assignments of the cases concerning the debts of the disputed services was ... specifically from the law firms "Sioufas and Associates," "Frangou," and from the company "Palladino," which date coincides with the one mentioned by the complainant in his supplementary complaint, that he received a call on 04-01-2022 from the office "Sioufas and Associates." Additionally, in the description of the calls submitted to the Authority with the associates of the complained company, the statements of the complainant regarding the dispute of the association of his details with the services are recorded, so that DEI can be informed, as it has been informed in this case regarding the requests of the complainant, according to the correspondence between him and DEI. Therefore, the responsibility for the disturbances towards the complainant lies with DEI, which acts as the data controller, and not with the collaborating collection companies and law firms, which acted following the relevant assignment of the case. Therefore, the data controller, having clear knowledge of the complainant's dispute regarding the association of his VAT number with the disputed services, from which the debts arose, should have ceased further processing of the complainant's data, namely the transmission/disclosure/disposal to others until the issue was resolved (see Article 18 GDPR). In light of the above, the Authority finds that DEI, as the data controller, bears the responsibility for the processing of the complainant's data concerning the disturbances he received from November 2020 until January 2021, and it is established that DEI did not prove, based on the principle of accountability (Article 5 paragraph 2 GDPR) of the data controller who is obliged to demonstrate its compliance with the principles.

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of Article 5 paragraph 1 of the GDPR, in what way the restoration of the historical ownership status of the disputed benefits was carried out, with what actions and at what exact moment, violating the principles of legality and accuracy of data processing as stated in Article 5 paragraph 1 subparagraphs a and d of the GDPR.

B. Regarding the Municipality of Athens:

i. pursuant to Article 43 of Law 3979/2011 paragraph 1b "the municipal fees for cleanliness and lighting [...], the tax on electrified spaces [...] and the property tax [...] are borne by the person liable for payment of the electricity consumption bill and are collected by the Public Power Corporation (PPC) or the alternative electricity supplier, in installments equal to the number of annual bills. [...] The collections made by the PPC or the respective alternative supplier are paid to the entitled municipality, based on a relevant clearing statement within the second month following the end of the month to which the bills belong. [...] If the liable person does not pay the aforementioned collected amounts, the electricity supplier proceeds to disconnect the electricity supply and does not reconnect it until the owed amount is paid. If the liable person does not request the reconnection of the electricity within three months from the disconnection, the electricity supplier notifies the relevant municipality of the details of the debts, so that it can proceed with their collection." From the above provisions of the law, it follows that the Municipality acts towards the subject and processes the personal data concerning it for the purpose of serving its own purposes, and the collection through the PPC is carried out only to facilitate the collection system of municipal fees and the property tax. The PPC, pursuant to the above law, transmitted the data to the Municipality of Athens for it to proceed with the collection of the debts concerning it. Therefore, the Authority finds that the Municipality of Athens becomes the data controller of the personal data of those liable for payment of the fees and taxes concerning the Municipality and collected with the electricity bill, as in the case under examination.

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ii. The complainant, after receiving the debt notifications from the Municipality of Athens for the cleanliness and lighting fees and property tax, sent to the Data Processing Officer of the Municipality the emails dated ... and ..., exercising the rights of access and deletion respectively. From the file's evidence, it appears that the Municipality of Athens did not inform the complainant electronically, since

the requests were submitted via emails, as it was obliged to do, about the actions that had been taken following the exercise of his rights. Therefore, the Authority finds a violation of Article 12 paragraph 3 of the GDPR.

11.

Based on the above, the Authority finds that there is a case to exercise its corrective powers to impose fines as per Articles 58 paragraph 2 subparagraph (h) and 83 of the GDPR. For the determination of the fines, which the Authority considers effective, proportionate, and deterrent, the assessment criteria set out in Article 83 paragraph 2 of the GDPR that apply to the present case are taken into account, as they have been specifically interpreted by the Guidelines 4/2022 of the EDPB for the calculation of administrative fines.

12.

In evaluating the data, the Authority particularly takes into account that the nature and severity of the violations concern the fundamental principles of legality and accuracy of processing, which are essential for the protection of personal data, according to the GDPR.

Based on the above, the Authority unanimously decides that administrative sanctions, as mentioned in the operative part, should be imposed on the reported company PPC S.A. and the reported Municipality of Athens, as data controllers, which are deemed proportional to the severity of the violations.

FOR THESE REASONS

The Authority

[5https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-042022-calculation-administrative-fines-under_en](https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-042022-calculation-administrative-fines-under_en) - version 2.1

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A. Imposes on PPC S.A., as data controller, based on Article 58 paragraph 2 subparagraph (h) of the GDPR, a fine of seven thousand five hundred euros (€7,500) for the violation of the exercised right of rectification (Articles 16 and 12 paragraphs 2 and 3 of the GDPR).

B. Imposes on PPC S.A., as data controller, based on Article 58 paragraph 2 subparagraph (h) of the GDPR, a fine of seven thousand five hundred euros (€7,500) for the violation of the exercised right of deletion (Articles 17 subparagraphs b, c, and d and 12 paragraphs 2 and 3 of the GDPR).

C. Imposes on PPC S.A., as data controller, based on Article 58 paragraph 2 subparagraph (h) of the GDPR, a fine of ten thousand euros (€10,000) for the violation of the principles of legality and accuracy of processing of the complainant's personal data (Article 5 paragraph 1 subparagraphs a and d of the GDPR).

D. Imposes on the Municipality of Athens, as data controller, based on Article 58 paragraph 2 subparagraph (h) of the GDPR, a fine of three thousand euros (€3,000) for the violation of Article 12 paragraph 3 of the GDPR.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou